

pDistrict- Khulna

**In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)**

Present:

Mr Justice Md Atoar Rahman

Civil Revision No. 3792 of 1996

Shaikh Shamser Ali

...plaintiff- petitioner

- versus-

Abul Hasan and others

...defendant-opposite parties

No one appears

... for the plaintiff- petitioner

No one appears

... for the defendant-opposite parties

Judgment on: 27.02.2024

This Rule was issued on an application under section 115 of the Code of Civil Procedure, 1908 calling upon the opposite party No. 1 to show cause as to why the judgment and order dated 29.08.1996 passed by the learned Senior Assistant Judge, Dacope, Khulna in Miscellaneous Case No. 04 of 1996, should not be set aside and/or passed such other or further order(s) as to this court may seem fit and proper.

During issuance of the Rule operation of the impugned judgment and order dated 29.08.1996 was stayed.

The short facts for the purpose of disposal of the Rule are that the petitioner as plaintiff instituted Title Suit No. 86 of 1991 in the Court of Additional Assistant Judge, Khulna, against the defendant opposite parties for declaration of title. The suit was fixed for peremptory hearing on 18.07.1992. The plaintiff-petitioner filed hazira but the defendant-opposite parties No. 1 to 2 were found absent and the suit was decreed *exparte* on 18.07.1992. Thereafter the defendant opposite party No. 1 filed Miscellaneous Case No. 02 of 1992 in the trial court under Order IX rule 13 of the Code of Civil Procedure for setting aside the *exparte* judgment and decree dated 18.07.1992 and 25.07.1992 respectively passed in the Title Suit No. 86 of 1991. The said miscellaneous case was transferred to the Court of Assistant Judge, Dacope and the same was re-numbered as Miscellaneous Case No. 04 of 1996. Learned Judge of the transferee court on hearing both the parties allowed the miscellaneous case by his judgment and order dated 29.08.1996.

Being aggrieved and dissatisfied with the above judgment and order passed by the learned Assistant Judge, Dacope, the plaintiff opposite party No. 1 being petitioner moved this court with an application under section 115 of the Code of Civil Procedure and obtained the present Rule and order of stay.

No one appears either of the parties.

I have perused the application along with impugned judgment and order and other connected papers on record.

It appears that in the application of the miscellaneous case under Order IX rule 13 the main contention of the defendant-petitioner-opposite party was that without serving any summons upon him the ex parte decree was obtained by practicing fraud. But the learned trial Judge while passing the impugned order found that summons was duly served upon the defendant-petitioner-opposite party and after receiving the summons he appeared in the court and filed a solenama, although subsequently it was not proved since he was not present to prove the same and thereafter the suit was heard and decreed ex parte. Thus, the averment of the application filed under Order IX rule 13 was found false and incorrect. In spite of that without forming any opinion to the effect that the defendant-petitioner-opposite party was prevented from sufficient cause from appearing when the matter was taken up for hearing the learned Assistant Judge allowed the miscellaneous case committing an error of law resulting in an error in his decision occasioning failure of justice and, as such, I found substance in the Rule.

In the result, the Rule is made absolute without any order as to cost.

The impugned judgment and order dated 29.08.1996 passed by the learned Assistant Judge, Dacope, Khulna in Miscellaneous Case

No. 04 of 1996 allowing the same and setting aside the judgment and decree dated 18.07.1992 and 25.07.1992 respectively passed by the Additional Assistant Judge, Khulna in Title Suit No. 86 of 1991 is set aside and the judgment and decree dated 18.07.1992 and 25.07.1992 passed in the Title Suit No. 86 of 1986 is hereby upheld.

Let the copy of this judgment be sent to the courts below at once.